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Seldin steps down from Pitkin bench

Rick Carroll, Aspen Daily News Staff Writer
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This photo, taken in November 2015, shows Chris Seldin, center, during his swearing-in ceremony as a 9th Judicial District judge. Seldin was sworn on the steps of the Pitkin County Courthouse. He announced earlier this year he would not seek retention, and his position was vacated Oct. 5. Gov. Jared Polis recently appointed Pitkin County Deputy Attorney Laura C. Makar to take Seldin's seat.

Courtesy of Aspen Public Radio

For more than two decades, Chris Seldin — who announced in June that he would not be seeking retention for judgeship in the 9th Judicial District — did much of his work at one of two addresses on East Main Street in Aspen, the seat of Pitkin County.

He worked for Pitkin County as an assistant attorney starting in 2002 and moved next door to the Pitkin County Courthouse, where he was sworn in the courthouse steps as district judge in November 2015. Seldin took the bench after Democratic Gov. John Hickenlooper, now a U.S. senator, appointed him to replace retiring Judge Gail Nichols.

Gov. Jared Polis, also a Democrat, appointed Pitkin County Deputy Attorney Laura C. Makar to take Seldin's seat on the 9th Judicial District Court.

Seldin officially hung up his robe on Saturday as Pitkin County district judge. He is moving to Boulder, where he will re-enter the private sector after more than two decades away from it. Before moving to the Roaring Fork Valley, Seldin had worked two years at an international law firm in San Francisco representing technology companies and financial firms.

In an interview in August, Seldin said he could not disclose his next professional destination but he likened the economic energy in Boulder now to San Francisco in the early 2000s.

“When I’ve been down in Boulder I’ve felt a similar kind of energy and the economy down there looks and feels similar to what I experienced in San Francisco — a lot of dynamism, a lot of technology companies and entrepreneurs, and a lot of financial institutions focused on that market segment,” he said.



Chris Seldin has overseen district court cases in the Pitkin County Courthouse, pictured, since November 2015. He has stepped down from his judicial position in Aspen and will now be living and working in Boulder.

Aspen Daily News file

When Aspen popped up

Through a friend, Seldin learned of an opening in the Pitkin County Attorney's Office in 2002.

During the interview process, Seldin said he was attracted to Pitkin County professionally both for its land-use cases and the casualness that comes with living in a ski town. A former cross-country ski racer, Seldin grew up in Durango and said he had a short-term goal to return to Colorado. He also liked that Aspen Mountain's chairlifts were a five-minute walk from the county building.

“When the job in Aspen popped up, it looked like a great opportunity to get more time in the courtroom, which I had been looking for ... and it was a little bit just taking an opportunity that presented itself, and I was really into telemark skiing at the time,” he said.

Seldin interviewed with John Ely, who was Pitkin County’s head attorney, and County Commissioner Patti Clapper. It didn’t take long for him to see that he was far away from the corporate culture.

“I remember walking into that interview in a suit and a tie and realized I was a little overdressed when Patti walked in wearing flip-flops and a tank top, and thought, ‘Wow this sounds like a really neat organization.’ And I obviously learned about Pitkin County and the sorts of work that it did in the land-use areas, which was of interest to me, so I decided to apply and take a crack at it.”

As an assistant county attorney, Seldin worked under John Ely, who died in June. Seldin’s land-use experience as an assistant county attorney included his work collaborating with other governments toward preventing oil and gas drilling on Thompson Divide and his role ensuring the public could access Smuggler Mountain and the Hunter Creek Valley.

“Toward the tail end of my time with the county, I was working almost exclusively on the Thompson Divide,” he said of the 250,000 acres of public land near Glenwood Springs and Carbondale, between the Roaring Fork and North Fork valleys.

Seldin said the main challenges from his transition from assistant county attorney to district judge came in areas of law where he lacked experience. When his predecessor Nichols became a judge, her legal chops came from her time as a federal criminal prosecutor. It was the other way around for Seldin.

re he took the bench, it was almost as if Seldin, who was a member of the Basalt Town Council from 2006 to 2010, were back in law school cramming for an exam.

“So for me,” Seldin said, “the areas where I had deficits were criminal law and domestic relations. I felt pretty comfortable with civil litigation, between the time I had in San Francisco and the time I had in Pitkin County. And to come up to speed on the criminal and domestic, in the months prior to starting the job I had purchased a couple of treatises that are legal texts that explore comprehensively areas of law, and I just read cover to cover basically at night.

“I got through most of those treatises, reading at night after work on the weekends trying to come up to speed so that at least I had the legal framework. Clearly I had insufficient practice in those areas, so there was going to be a huge amount I was going to learn, but I wanted to come in armed as much as I could be with the legal framework in my mind before I started making decisions, and that helped quite a bit.”

Likened to an appellate judge

Over the next nine years as judge, Seldin saw cases involving custody battles, divorces, high-dollar civil disputes, property litigation and crimes.

In its 2018 evaluation of Seldin, the state’s Judicial Performance Commission said the judge “is diligent about legal research. His orders are so well written and thoroughly reasoned that many attorneys liken him to an appellate judge.

“He rules in a reasonably prompt fashion, even in difficult or complex cases, and his courtroom is orderly and efficient. Judge Seldin maintains appropriate decorum in his courtroom and treats all litigants and attorneys with the same restraint and respect he expects them to exhibit. He makes deliberate efforts to connect with each young person in his juvenile docket, where he creates teachable moments through an appropriate balance of compassion and consequences.”

Judges overseeing Pitkin County District Court’s criminal felony docket do not see homicide cases like more populated areas do; the last murder in Pitkin County, in February 2014, came before Seldin took oath as a judge. Criminal cases, though, can still have community ripple effects, from employee embezzlements to sexual assaults.

“When I first started, we had no sexual assault cases,” Seldin said. “Now we have five to 10 at any given time. That’s a rough estimate and might not include cases that haven’t been filed yet. But the volume of sexual assault cases and sexual assault files has increased.”

The judicial commission’s review noted that Seldin’s work in recovery court, which is for criminal offenders with underlying mental-health or addiction issues, “has achieved a high success rate” and “he gives offenders the opportunity to rehabilitate while simultaneously holding them strictly accountable for all conditions of their probation. Judge Seldin is well-respected among court staff and exhibits the highest levels of intellectual ability and commitment to public service. The Commission unanimously agreed that he meets performance standards.”

Seldin graduated from Dartmouth College and earned a law degree from University of California at Berkeley in 2002. Out of law school, he clerked for Colorado Supreme Court Justice Gregory J. Hobbs Jr. before working in San Francisco for two years. Since he became judge, Seldin said he has maintained a private profile and family life but remains active.

He added that he will be “a regular visitor and remain personally and professionally involved” in the Roaring Fork Valley.

“I’ve been here 20 years. I know this valley so well and I feel invested in it both personally and professional. so I’m certainly not saying goodbye.”

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